

# STATE OF NEW YORK

11180--A

## IN ASSEMBLY

May 1, 2026

Introduced by M. of A. PAULIN -- read once and referred to the Committee on Transportation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the vehicle and traffic law and the public officers law, in relation to establishing a school speed zone camera demonstration program in the village of Pelham; and providing for the repeal of such provisions upon expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The vehicle and traffic law is amended by adding a new  
2 section 1180-i to read as follows:

3 § 1180-i. Owner liability for failure of operator to comply with  
4 certain posted maximum speed limits; village of Pelham. (a) 1. Notwith-  
5 standing any other provision of law, the village of Pelham is hereby  
6 authorized to establish a demonstration program imposing monetary  
7 liability on the owner of a vehicle for failure of an operator thereof  
8 to comply with posted maximum speed limits in a school speed zone within  
9 such village (i) when a school speed limit is in effect as provided in  
10 paragraphs one and two of subdivision (c) of section eleven hundred  
11 eighty of this article or (ii) when other speed limits are in effect as  
12 provided in subdivision (b), (d), (f) or (g) of section eleven hundred  
13 eighty of this article during the following times: (A) on school days  
14 during school hours and one hour before and one hour after the school  
15 day, and (B) a period during student activities at the school and up to  
16 thirty minutes immediately before and up to thirty minutes immediately  
17 after such student activities. Such demonstration program shall empower  
18 the village of Pelham to install photo speed violation monitoring  
19 systems within no more than seven school speed zones within such village  
20 at any one time and to operate such systems within such zones (iii) when  
21 a school speed limit is in effect as provided in paragraphs one and two  
22 of subdivision (c) of section eleven hundred eighty of this article or  
23 (iv) when other speed limits are in effect as provided in subdivision  
24 (b), (d), (f) or (g) of section eleven hundred eighty of this article  
25 during the following times: (A) on school days during school hours and

EXPLANATION--Matter in italics (underscored) is new; matter in brackets  
[-] is old law to be omitted.

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1 one hour before and one hour after the school day, and (B) a period  
2 during student activities at the school and up to thirty minutes imme-  
3 diately before and up to thirty minutes immediately after such student  
4 activities. In selecting a school speed zone in which to install and  
5 operate a photo speed violation monitoring system, the village shall  
6 consider criteria including, but not limited to, the speed data, crash  
7 history, and the roadway geometry applicable to such school speed zone.

8 2. No photo speed violation monitoring system shall be used in a  
9 school speed zone unless (i) on the day it is to be used it has success-  
10 fully passed a self-test of its functions; and (ii) it has undergone an  
11 annual calibration check performed pursuant to paragraph four of this  
12 subdivision. The village shall install signs giving notice that a photo  
13 speed violation monitoring system is in use to be mounted on advance  
14 warning signs notifying motor vehicle operators of such upcoming school  
15 speed zone and/or on speed limit signs applicable within such school  
16 speed zone, in conformance with standards established in the MUTCD.

17 3. Operators of photo speed violation monitoring systems shall have  
18 completed training in the procedures for setting up, testing, and oper-  
19 ating such systems. Each such operator shall complete and sign a daily  
20 set-up log for each such system that the operator operates that (i)  
21 states the date and time when, and the location where, the system was  
22 set up that day, and (ii) states that such operator successfully  
23 performed, and the system passed, the self-tests of such system before  
24 producing a recorded image that day. The village shall retain each such  
25 daily log until the later of the date on which the photo speed violation  
26 monitoring system to which it applies has been permanently removed from  
27 use or the final resolution of all cases involving notices of liability  
28 issued based on photographs, microphotographs, videotape or other  
29 recorded images produced by such system.

30 4. Each photo speed violation monitoring system shall undergo an annu-  
31 al calibration check performed by an independent calibration laboratory  
32 which shall issue a signed certificate of calibration. The village shall  
33 keep each such annual certificate of calibration on file until the final  
34 resolution of all cases involving a notice of liability issued during  
35 such year which were based on photographs, microphotographs, videotape  
36 or other recorded images produced by such photo speed violation monitor-  
37 ing system.

38 5. (i) Such demonstration program shall utilize necessary technologies  
39 to ensure, to the extent practicable, that photographs, microphoto-  
40 graphs, videotape or other recorded images produced by such photo speed  
41 violation monitoring systems shall not include images that identify the  
42 driver, the passengers, or the contents of the vehicle. Provided,  
43 however, that no notice of liability issued pursuant to this section  
44 shall be dismissed solely because such a photograph, microphotograph,  
45 videotape or other recorded image allows for the identification of the  
46 driver, the passengers, or the contents of vehicles where the village  
47 shows that it made reasonable efforts to comply with the provisions of  
48 this paragraph in such case.

49 (ii) Photographs, microphotographs, videotape or any other recorded  
50 image from a photo speed violation monitoring system shall be for the  
51 exclusive use of the village for the purpose of the adjudication of  
52 liability imposed pursuant to this section and of the owner receiving a  
53 notice of liability pursuant to this section, and shall be destroyed by  
54 the village upon the final resolution of the notice of liability to  
55 which such photographs, microphotographs, videotape or other recorded  
56 images relate, or one year following the date of issuance of such notice

1 of liability, whichever is later. Notwithstanding the provisions of any  
2 other law, rule or regulation to the contrary, photographs, microphoto-  
3 graphs, videotape or any other recorded image from a photo speed  
4 violation monitoring system shall not be open to the public, nor subject  
5 to civil or criminal process or discovery, nor used by any court or  
6 administrative or adjudicatory body in any action or proceeding therein  
7 except that which is necessary for the adjudication of a notice of  
8 liability issued pursuant to this section, and no public entity or  
9 employee, officer or agent thereof shall disclose such information,  
10 except that such photographs, microphotographs, videotape or any other  
11 recorded images from such systems:

12 (A) shall be available for inspection and copying and use by the motor  
13 vehicle owner and operator for so long as such photographs, microphoto-  
14 graphs, videotape or other recorded images are required to be maintained  
15 or are maintained by such public entity, employee, officer or agent; and

16 (B) (1) shall be furnished when described in a search warrant issued  
17 by a court authorized to issue such a search warrant pursuant to article  
18 six hundred ninety of the criminal procedure law or a federal court  
19 authorized to issue such a search warrant under federal law, where such  
20 search warrant states that there is reasonable cause to believe such  
21 information constitutes evidence of, or tends to demonstrate that, a  
22 misdemeanor or felony offense was committed in this state or another  
23 state, or that a particular person participated in the commission of a  
24 misdemeanor or felony offense in this state or another state, provided,  
25 however, that if such offense was against the laws of another state, the  
26 court shall only issue a warrant if the conduct comprising such offense  
27 would, if occurring in this state, constitute a misdemeanor or felony  
28 against the laws of this state; and

29 (2) shall be furnished in response to a subpoena duces tecum signed by  
30 a judge of competent jurisdiction and issued pursuant to article six  
31 hundred ten of the criminal procedure law or a judge or magistrate of a  
32 federal court authorized to issue such a subpoena duces tecum under  
33 federal law, where the judge finds and the subpoena states that there is  
34 reasonable cause to believe such information is relevant and material to  
35 the prosecution, or the defense, or the investigation by an authorized  
36 law enforcement official, of the alleged commission of a misdemeanor or  
37 felony in this state or another state, provided, however, that if such  
38 offense was against the laws of another state, such judge or magistrate  
39 shall only issue such subpoena if the conduct comprising such offense  
40 would, if occurring in this state, constitute a misdemeanor or felony in  
41 this state; and

42 (3) may, if lawfully obtained pursuant to this clause and clause (A)  
43 of this subparagraph and otherwise admissible, be used in such criminal  
44 action or proceeding.

45 (b) If the village of Pelham establishes a demonstration program  
46 pursuant to subdivision (a) of this section, the owner of a vehicle  
47 shall be liable for a penalty imposed pursuant to this section if such  
48 vehicle was used or operated with the permission of the owner, express  
49 or implied, within a school speed zone in violation of subdivision (c)  
50 or during the times authorized pursuant to subdivision (a) of this  
51 section in violation of subdivision (b), (d), (f) or (g) of section  
52 eleven hundred eighty of this article, such vehicle was traveling at a  
53 speed of more than ten miles per hour above the posted speed limit in  
54 effect within such school speed zone, and such violation is evidenced by  
55 information obtained from a photo speed violation monitoring system;  
56 provided however that no owner of a vehicle shall be liable for a penal-

1 ty imposed pursuant to this section where the operator of such vehicle  
2 has been convicted of the underlying violation of subdivision (b), (c),  
3 (d), (f) or (g) of section eleven hundred eighty of this article.

4 (c) For purposes of this section, the following terms shall have the  
5 following meanings:

6 1. "manual on uniform traffic control devices" or "MUTCD" shall mean  
7 the manual and specifications for a uniform system of traffic control  
8 devices maintained by the commissioner of transportation pursuant to  
9 section sixteen hundred eighty of this chapter;

10 2. "owner" shall have the meaning provided in article two-B of this  
11 chapter;

12 3. "photo speed violation monitoring system" shall mean a vehicle  
13 sensor installed to work in conjunction with a speed measuring device  
14 which automatically produces two or more photographs, two or more micro-  
15 photographs, a videotape or other recorded images of each vehicle at the  
16 time it is used or operated in a school speed zone in violation of  
17 subdivision (b), (c), (d), (f) or (g) of section eleven hundred eighty  
18 of this article in accordance with the provisions of this section; and

19 4. "school speed zone" shall mean a distance not to exceed one thou-  
20 sand three hundred twenty feet on a highway passing a school building,  
21 entrance or exit of a school abutting on the highway.

22 (d) A certificate, sworn to or affirmed by a technician employed by  
23 the village of Pelham, or a facsimile thereof, based upon inspection of  
24 photographs, microphotographs, videotape or other recorded images  
25 produced by a photo speed violation monitoring system, shall be prima  
26 facie evidence of the facts contained therein. Any photographs, micro-  
27 photographs, videotape or other recorded images evidencing such a  
28 violation shall include at least two date and time stamped images of the  
29 rear of the motor vehicle that include the same stationary object near  
30 the motor vehicle and shall be available for inspection reasonably in  
31 advance of and at any proceeding to adjudicate the liability for such  
32 violation pursuant to this section.

33 (e) An owner liable for a violation of subdivision (b), (c), (d), (f)  
34 or (g) of section eleven hundred eighty of this article pursuant to a  
35 demonstration program established pursuant to this section shall be  
36 liable for monetary penalties in accordance with a schedule of fines and  
37 penalties to be set forth in such local law or ordinance. The liability  
38 of the owner pursuant to this section shall not exceed fifty dollars for  
39 each violation; provided, however, that such local law or ordinance may  
40 provide for an additional penalty not in excess of twenty-five dollars  
41 for each violation for the failure to respond to a notice of liability  
42 within the prescribed time period.

43 (f) An imposition of liability under the demonstration program estab-  
44 lished pursuant to this section shall not be deemed a conviction as an  
45 operator and shall not be made part of the operating record of the  
46 person upon whom such liability is imposed nor shall it be used for  
47 insurance purposes in the provision of motor vehicle insurance coverage.

48 (g) 1. A notice of liability shall be sent by first class mail to each  
49 person alleged to be liable as an owner for a violation of subdivision  
50 (b), (c), (d), (f) or (g) of section eleven hundred eighty of this arti-  
51 cle pursuant to this section, within fourteen business days if such  
52 owner is a resident of this state and within forty-five business days if  
53 such owner is a non-resident. Personal delivery on the owner shall not  
54 be required. A manual or automatic record of mailing prepared in the  
55 ordinary course of business shall be prima facie evidence of the facts  
56 contained therein.

1 2. A notice of liability shall contain the name and address of the  
2 person alleged to be liable as an owner for a violation of subdivision  
3 (b), (c), (d), (f) or (g) of section eleven hundred eighty of this arti-  
4 cle pursuant to this section, the registration number of the vehicle  
5 involved in such violation, the location where such violation took  
6 place, the date and time of such violation, the identification number of  
7 the camera which recorded the violation or other document locator  
8 number, at least two date and time stamped images of the rear of the  
9 motor vehicle that include the same stationary object near the motor  
10 vehicle, and the certificate charging the liability.

11 3. The notice of liability shall contain information advising the  
12 person charged of the manner and the time in which the person may  
13 contest the liability alleged in the notice. Such notice of liability  
14 shall also contain a prominent warning to advise the person charged that  
15 failure to contest in the manner and time provided shall be deemed an  
16 admission of liability and that a default judgment may be entered there-  
17 on.

18 4. The notice of liability shall be prepared and mailed by the village  
19 of Pelham, or by any other entity authorized by the village to prepare  
20 and mail such notice of liability.

21 (h) Adjudication of the liability imposed upon owners of this section  
22 shall be by a traffic violations bureau established pursuant to section  
23 three hundred seventy of the general municipal law or, if there be none,  
24 by the court having jurisdiction over traffic infractions.

25 (i) If an owner receives a notice of liability pursuant to this  
26 section for any time period during which the vehicle or the number plate  
27 or plates of such vehicle was reported to the police department as  
28 having been stolen, it shall be a valid defense to an allegation of  
29 liability for a violation of subdivision (b), (c), (d), (f) or (g) of  
30 section eleven hundred eighty of this article pursuant to this section  
31 that the vehicle or the number plate or plates of such vehicle had been  
32 reported to the police as stolen prior to the time the violation  
33 occurred and had not been recovered by such time. For purposes of  
34 asserting the defense provided by this subdivision, it shall be suffi-  
35 cient that a certified copy of the police report on the stolen vehicle  
36 or number plate or plates of such vehicle be sent by first class mail to  
37 the traffic violations bureau or court having jurisdiction.

38 (j) An owner who is a lessor of a vehicle to which a notice of liabil-  
39 ity was issued pursuant to subdivision (g) of this section shall not be  
40 liable for the violation of subdivision (b), (c), (d), (f) or (g) of  
41 section eleven hundred eighty of this article, provided that such owner  
42 sends to the traffic violations bureau or court having jurisdiction a  
43 copy of the rental, lease or other such contract document covering such  
44 vehicle on the date of the violation, with the name and address of the  
45 lessee clearly legible, within thirty-seven days after receiving notice  
46 from the bureau or court of the date and time of such violation, togeth-  
47 er with the other information contained in the original notice of  
48 liability. Failure to send such information within such thirty-seven day  
49 time period shall render the owner liable for the penalty prescribed by  
50 this section. Where the lessor complies with the provisions of this  
51 subdivision, the lessee of such vehicle on the date of such violation  
52 shall be deemed to be the owner of such vehicle for purposes of this  
53 section, shall be subject to liability for the violation of subdivision  
54 (d) of section eleven hundred eleven of this article pursuant to this  
55 section and shall be sent a notice of liability pursuant to subdivision  
56 (g) of this section.



1 (k) 1. If the owner liable for a violation of subdivision (c) or (d)  
2 of section eleven hundred eighty of this article pursuant to this  
3 section was not the operator of the vehicle at the time of the  
4 violation, the owner may maintain an action for indemnification against  
5 the operator.

6 2. Notwithstanding any other provision of this section, no owner of a  
7 vehicle shall be subject to a monetary fine imposed pursuant to this  
8 section if the operator of such vehicle was operating such vehicle with-  
9 out the consent of the owner at the time such operator operated such  
10 vehicle in violation of subdivision (b), (c), (d), (f) or (g) of section  
11 eleven hundred eighty of this article. For purposes of this subdivision  
12 there shall be a presumption that the operator of such vehicle was oper-  
13 ating such vehicle with the consent of the owner at the time such opera-  
14 tor operated such vehicle in violation of subdivision (b), (c), (d), (f)  
15 or (g) of section eleven hundred eighty of this article.

16 (l) Nothing in this section shall be construed to limit the liability  
17 of an operator of a vehicle for any violation of subdivision (c) or (d)  
18 of section eleven hundred eighty of this article.

19 (m) If the village adopts a demonstration program pursuant to subdivi-  
20 sion (a) of this section it shall conduct a study and submit an annual  
21 report on the results of the use of photo devices to the governor, the  
22 temporary president of the senate and the speaker of the assembly on or  
23 before the first day of June next succeeding the effective date of this  
24 section and on the same date in each succeeding year in which the demon-  
25 stration program is operable. Such report shall include:

26 1. the locations where and dates when photo speed violation monitoring  
27 systems were used;

28 2. the aggregate number, type and severity of crashes, fatalities,  
29 injuries and property damage reported within all school speed zones  
30 within the village, to the extent the information is maintained by the  
31 department of motor vehicles of this state;

32 3. the aggregate number, type and severity of crashes, fatalities,  
33 injuries and property damage reported within school speed zones where  
34 photo speed violation monitoring systems were used, to the extent the  
35 information is maintained by the department of motor vehicles of this  
36 state;

37 4. the number of violations recorded within all school speed zones  
38 within the village, in the aggregate on a daily, weekly and monthly  
39 basis;

40 5. the number of violations recorded within each school speed zone  
41 where a photo speed violation monitoring system is used, in the aggre-  
42 gate on a daily, weekly and monthly basis;

43 6. the number of violations recorded within all school speed zones  
44 within the village that were:

45 (i) more than ten but not more than twenty miles per hour over the  
46 posted speed limit;

47 (ii) more than twenty but not more than thirty miles per hour over the  
48 posted speed limit;

49 (iii) more than thirty but not more than forty miles per hour over the  
50 posted speed limit; and

51 (iv) more than forty miles per hour over the posted speed limit;

52 7. the number of violations recorded within each school speed zone  
53 where a photo speed violation monitoring system is used that were:

54 (i) more than ten but not more than twenty miles per hour over the  
55 posted speed limit;

1 (ii) more than twenty but not more than thirty miles per hour over the  
2 posted speed limit;

3 (iii) more than thirty but not more than forty miles per hour over the  
4 posted speed limit; and

5 (iv) more than forty miles per hour over the posted speed limit;

6 8. the total number of notices of liability issued for violations  
7 recorded by such systems;

8 9. the number of fines and total amount of fines paid after the first  
9 notice of liability issued for violations recorded by such systems;

10 10. the number of violations adjudicated and the results of such adju-  
11 dications including breakdowns of dispositions made for violations  
12 recorded by such systems;

13 11. the total amount of revenue realized by the village in connection  
14 with the program;

15 12. the expenses incurred by the village in connection with the  
16 program; and

17 13. the quality of the adjudication process and its results.

18 (n) It shall be a defense to any prosecution for a violation of subdi-  
19 vision (b), (c), (d), (f) or (g) of section eleven hundred eighty of  
20 this article pursuant to this section that such photo speed violation  
21 monitoring system was malfunctioning at the time of the alleged  
22 violation.

23 § 2. Subdivision 2 of section 87 of the public officers law is amended  
24 by adding a new paragraph (w) to read as follows:

25 (w) are photographs, microphotographs, videotape or other recorded  
26 images prepared under the authority of section eleven hundred eighty-i  
27 of the vehicle and traffic law.

28 § 3. The purchase or lease of equipment for a demonstration program  
29 established pursuant to section 1180-i of the vehicle and traffic law,  
30 as added by section one of this act, shall be subject to the provisions  
31 of section 103 of the general municipal law.

32 § 4. This act shall take effect on the thirtieth day after it shall  
33 have become a law and shall expire December 31, 2031, when upon such  
34 date the provisions of this act shall be deemed repealed. Effective  
35 immediately, the addition, amendment and/or repeal of any rule or regu-  
36 lation necessary for the implementation of this act on its effective  
37 date are authorized to be made and completed on or before such effective  
38 date.